

Court No. - 36

Case :- WRIT - C No. - 47425 of 2013

Petitioner :- Smt. Meenu Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shashank Tripathi

Counsel for Respondent :- C.S.C.,Dr. S.K. Yadav

Hon'ble Vineet Saran,J.

Hon'ble Manoj Kumar Gupta,J.

The case of the petitioner is that she had applied for an electricity connection, which has been refused by order dated 26.7.2013 passed by the respondent no. 3 stating that since there are dues of three electricity consumers, namely, Sri Hajari Lal Verma, Sri R.K. Agrawal and Sri Pradeep Kumar Verma hence a new connection to the petitioner which is for another premises but in the same building cannot be granted.

Dr. S.K. Yadav, learned counsel appearing for the respondents no. 2 and 3 states that the said order has been passed in pursuance of Clause 4.1 of the U.P. Electricity Supply Code, 2005.

From the perusal of the said Clause of the Electricity Code, it is clear that if a fresh connection has been applied for the premises with respect to which there is a default, then the same can be refused. However, in the present case what the petitioner submits is that in one building there are several tenants occupying different portions and having separate electricity connections and with which petitioner has no concern, being in occupation of different portion and therefore, the provisions of Clause 4.1 will not be attracted.

In our view, the submission of the learned counsel for the petitioner prima-facie has force.

Accordingly, it is directed that the respondents shall either ensure that the electricity connection is provided to the petitioner ignoring the fact that there are arrears against other consumers in the same building but residing in the premises different from that of the petitioner or they may show cause by filing a counter affidavit within three weeks.

List on 7th October, 2013.

Order Date :- 12.9.2013

p.s.

(Manoj Kumar Gupta, J.) (Vineet Saran, J.)

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Hon'ble Arun Tandon,J.

Hon'ble Mrs. Sunita Agarwal,J.

Heard learned counsel for the parties.

This writ petition has been filed for quashing of the order dated 26.07.2013 where-under the application made by the petitioner for providing an electricity supply connection to the premises, more appropriately disclosed in the application, has been rejected after recording that there are outstanding arrears in respect of the same premises against three persons namely Hajari Lal Verma, R.K.Agrawal and Pradeep Kumar Verma.

Counsel for the petitioner submits that there are separate tenants in separate portions of the premises in question and, therefore, the rights of the petitioner cannot be jeopardized because of the act of aforesaid three persons.

In our opinion pure issues of fact with reference to whether the arrears of the same premises is due and as to whether the Kanpur Electricity Supply Company is legally justified in refusing electricity supply connection to the petitioner for default in payment of arrears by the aforesaid three persons are involved which can be more appropriately examined by the Managing Director, Kanpur Electricity Supply Company Ltd., Kanpur Nagar (Respondent no. 2), at the first instance.

Accordingly, the present writ petition is disposed of with liberty to the petitioner to make a representation ventilating all his grievances before respondent no. 2, within two weeks from today, along with a certified copy of this order. On such representation being made the respondent no. 2 shall call for the records and shall pass a reasoned and speaking order preferably within eight weeks thereafter.

Order Date :- 5.9.2016

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